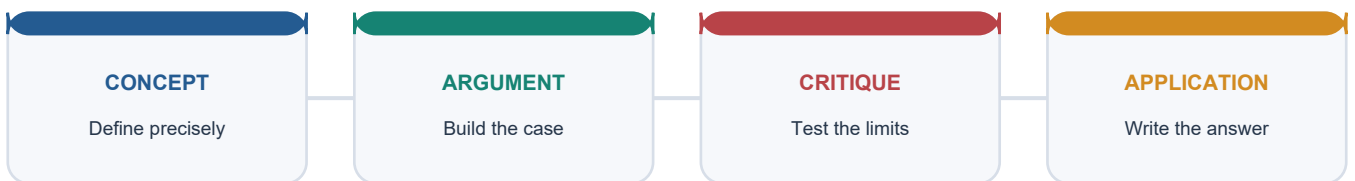


SOLVED PRACTICE WORKBOOK

Amendment and Basic Structure - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Amendment and Basic Structure - Solved Practice Workbook 4

BASIC MCQS / REMEDIATION 4

Q1. With reference to Article 368, which formulation is the most accurate?	4
Q2. In a House with a total membership of 245, 180 members are present and voting on an Article 368 Bill. What is the minimum number of affirmative votes needed?	4
Q3. Which statement correctly describes creation or abolition of a State Legislative Council?	5
Q4. Which group lies entirely within the State-ratification proviso to Article 368?	5
Q5. A Constitution Amendment Bill is pending in Rajya Sabha and has not been passed by Lok Sabha when Lok Sabha is dissolved. Which statement is correct?	5
Q6. Consider the following statements about introduction of a Constitution Amendment Bill: 1. It may be introduced in either House. 2. It may be introduced by a private member. 3. It needs prior Presidential recommendation. Which are correct?	6
Q7. Which combination is most defensibly classified as constitutionally authorised ordinary-law change outside Article 368?	6
Q8. Which statement best describes institutional features absent from India's Article 368 process?	6
Q9. Which proposition belongs to Shankari Prasad (1951)?	7
Q10. The distinctive remedial technique used in Golak Nath (1967) was:	7
Q11. Which statement most accurately states the constitutional response made by the Twenty-fourth Amendment?	7
Q12. What was the legally important treatment of Article 31C as inserted by the Twenty-fifth Amendment in Kesavananda Bharati?	8
Q13. Which statement best captures the limited holding of Kesavananda Bharati (1973)?	8
Q14. What did <i>Indira Nehru Gandhi v. Raj Narain</i> (1975) principally demonstrate for basic-structure review?	8
Q15. Which pairing of Forty-second Amendment provisions and their objects is correct?	9
Q16. Why is <i>Minerva Mills</i> (1980) central to the doctrine of limited amending power?	9
Q17. The principal significance of <i>Waman Rao</i> for Ninth Schedule review is that it:	9
Q18. Under <i>I.R. Coelho</i> (2007), a law inserted into the Ninth Schedule after 24 April 1973:	10
Q19. Which statement about identifying the basic structure is constitutionally safest?	10
Q20. Which is the technically correct use of <i>Anjum Kadari</i> (2024 INSC 831)?	10
Q21. Which provision was added to the Article 368 ratification proviso by the One Hundred and First Amendment?	11
Q22. Which statement most accurately connects the NJAC judgment with basic structure?	11
Q23. What is the central basic-structure proposition of <i>L. Chandra Kumar</i> (1997)?	11
Q24. The amendment-versus-replacement distinction most directly asks whether:	12

Q25. What is the verified position of the One Hundred and Sixth Amendment as checked on 7 September 2026?	12
Q26. What did the Lok Sabha division on the Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 illustrate? . . .	12
Q27. Which statement correctly distinguishes an effective majority from the Article 368 majority?	13
Q28. Which statement best describes State ratification under the Article 368 proviso?	13
Q29. In an Article 368 vote, 300 members are present, 270 vote and 30 abstain. What is the denominator for the two-thirds present-and-voting limb?	13
Q30. Which correction is necessary to the statement "Abolition of a State Legislative Council needs only a simple majority"?	14
Q31. An ordinary State statute is alleged to destroy federalism. After Anjum Kadari, what should the court ask first?	14
Q32. Which result best illustrates severability in constitutional-amendment review?	14
PYQS AND ANSWER PRACTICE	15
PYQ provenance and answer-control ledger	15
Solved Mains PYQ 1. UPSC 2019 GS-II Q12	15
Solved Mains PYQ 2. UPSC 2025 GS-II Q12	16
Solved Prelims PYQ 1. UPSC 2018 GS-I Q5	16
Solved Prelims PYQ 2. UPSC 2019 GS-I Q45	17
Solved Prelims PYQ 3. UPSC 2019 GS-I Q47	17
Solved Prelims PYQ 4. UPSC 2020 GS-I Q13	17
Solved Prelims PYQ 5. UPSC 2022 GS-I Q13	17
Solved Prelims PYQ 6. UPSC 2023 GS-I Q34	18
Solved Prelims PYQ 7. UPSC 2024 GS-I Q66	18
Solved Prelims PYQ 8. UPSC 2025 GS-I Q58	18
Six original Mains questions with model solutions	18

Amendment and Basic Structure - Solved Practice Workbook

Source and status control: Constitution Part XX and connected provisions; canonical Basic, Advanced and complete topic owners; audited syllabus/PYQ ledgers; OCR-searchable local polity books; official amendment texts, Gazette notification and Supreme Court judgments checked through 7 September 2026. Exactly 32 original MCQs appear before ten audited direct/routed PYQs. Only the held final local-official 2024 and 2025 objective keys are printed; six earlier objective answer letters are withheld.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCD. Every option has a substantive question-specific explanation and every question ends with a distinct Examiner trap.

BASIC MCQS / REMEDIATION

Q1. With reference to Article 368, which formulation is the most accurate?

- A. Parliament exercises constituent power to amend by addition, variation or repeal, subject to the prescribed procedure and the basic-structure ceiling.
- B. Parliament becomes legally sovereign whenever half the States ratify an amendment.
- C. Presidential assent makes a constitutional amendment immune from judicial review.
- D. Article 368 is ordinary legislative power confined to provisions outside Part III.

Answer: A.

- **A:** Correct: Article 368(1) uses "constituent power" and the forms addition, variation and repeal; Kesavananda Bharati and Minerva Mills supply the substantive limit.
- **B:** Incorrect: State ratification is required only for the proviso subjects, and even a ratified amendment remains subordinate to the Constitution's basic structure.
- **C:** Incorrect: Assent completes the formal process, but courts may still examine procedural compliance and basic-structure damage.
- **D:** Incorrect: Article 368 can reach every Part, including Fundamental Rights, while ordinary legislative power operates on a different constitutional footing.

Examiner trap: Constituent power is wider than ordinary law-making, but it is not sovereign or unlimited.

Q2. In a House with a total membership of 245, 180 members are present and voting on an Article 368 Bill. What is the minimum number of affirmative votes needed?

- A. 120, because only two-thirds of members present and voting matters.
- B. 123, because both the total-membership majority and the two-thirds present-and-voting limb must be satisfied.
- C. 164, because two-thirds of the total membership is required.
- D. 91, because a majority of members present is sufficient.

Answer: B.

- **A:** Incorrect: 120 reaches two-thirds of 180 but fails the separate requirement of a majority of the House's total membership.
- **B:** Correct: A majority of 245 requires 123, while two-thirds of 180 is 120; the higher simultaneous threshold controls.
- **C:** Incorrect: Article 368 does not demand two-thirds of the full House strength; it combines two differently calculated limbs.
- **D:** Incorrect: An ordinary present-and-voting majority cannot substitute for either constitutional threshold.

Examiner trap: Calculate both limbs independently and use the higher minimum; "special majority" is not one denominator.

Q3. Which statement correctly describes creation or abolition of a State Legislative Council?

- A. Parliament and the State Assembly both act by an ordinary present-and-voting majority.
- B. The Governor creates or abolishes the Council after Parliament approves a resolution.
- C. The State Assembly first passes the Article 169 resolution by its prescribed special majority; Parliament then enacts an ordinary law outside Article 368.
- D. The change always requires an Article 368 amendment ratified by half the States.

Answer: C.

- **A:** Incorrect: Parliament's eventual law is ordinary, but the initiating Assembly resolution needs a majority of total membership plus two-thirds present and voting.
- **B:** Incorrect: The Governor cannot create or abolish a Legislative Council by executive action.
- **C:** Correct: Article 169 deliberately combines a special initiating resolution in the State Assembly with a parliamentary law not deemed an Article 368 amendment.
- **D:** Incorrect: Legislative Council creation or abolition follows Article 169, not the federal-ratification proviso.

Examiner trap: "Simple-majority constitutional change" describes Parliament's law here, not every prior procedural step.

Q4. Which group lies entirely within the State-ratification proviso to Article 368?

- A. Article 241, Fundamental Duties and the Second Schedule
- B. Articles 54 and 55, plus conditions of the Governor's office
- C. Chapter IV of Part V, Article 324 and the Tenth Schedule
- D. Article 279A, Chapter I of Part XI and representation of States in Parliament

Answer: D.

- **A:** Incorrect: Article 241 is included, but Part IVA and the Second Schedule are not named proviso subjects as such.
- **B:** Incorrect: Articles 54 and 55 are included; conditions of the Governor's office are not.
- **C:** Incorrect: The Union Judiciary chapter is included, whereas Article 324 and the Tenth Schedule do not independently appear in the list.
- **D:** Correct: The GST Council article, the legislative-relations chapter and State representation are all expressly protected by the additional federal-consent stage.

Examiner trap: Use the exact Articles, Chapters, Lists and representation limb; loose "federal matters" shorthand over-includes.

Q5. A Constitution Amendment Bill is pending in Rajya Sabha and has not been passed by Lok Sabha when Lok Sabha is dissolved. Which statement is correct?

- A. It does not lapse merely because of the dissolution, under the narrow rule in Article 107(5).
- B. It automatically lapses because both Houses must exist simultaneously throughout the process.
- C. It must be sent to a joint sitting after the new Lok Sabha is constituted.
- D. Rajya Sabha may send it directly to the President after the dissolution.

Answer: A.

- **A:** Correct: Article 107(5) protects a Bill pending in Rajya Sabha that Lok Sabha has not passed from lapse merely on dissolution.
- **B:** Incorrect: Dissolution does not erase this specifically protected Rajya Sabha posture.
- **C:** Incorrect: Article 108 joint-sitting machinery cannot rescue or complete a constitutional amendment.
- **D:** Incorrect: Passage by both Houses remains indispensable; Rajya Sabha cannot bypass Lok Sabha or Presidential-stage prerequisites.

Examiner trap: Do not generalise the narrow Rajya Sabha rule into the false slogan that amendment Bills never lapse.

Q6. Consider the following statements about introduction of a Constitution Amendment Bill: 1. It may be introduced in either House. 2. It may be introduced by a private member. 3. It needs prior Presidential recommendation. Which are correct?

- A. 2 and 3 only
- B. 1 and 2 only
- C. 1, 2 and 3
- D. 1 only

Answer: B.

- **A:** Incorrect: A private member may introduce the Bill, but prior Presidential recommendation is not a constitutional condition.
- **B:** Correct: Either House and either ministerial or private-member sponsorship are permitted.
- **C:** Incorrect: Statement 3 wrongly imports a recommendation requirement from other legislative categories.
- **D:** Incorrect: This omits the valid private-member route recognised for amendment Bills.

Examiner trap: Separate the absent recommendation at introduction from the President's mandatory assent at the end.

Q7. Which combination is most defensibly classified as constitutionally authorised ordinary-law change outside Article 368?

- A. Amending Fundamental Rights, Directive Principles and the Preamble
- B. Rewriting the Union Judiciary chapter, altering Article 279A and changing Article 54
- C. Forming a new State under Articles 3-4, regulating citizenship under Article 11 and amending the Fifth Schedule through its express mechanism
- D. Changing Article 368, State representation in Parliament and List I

Answer: C.

- **A:** Incorrect: These entrenched constitutional fields ordinarily require Article 368, subject to the relevant route.
- **B:** Incorrect: Each item falls within the Article 368 proviso's federal-consent architecture.
- **C:** Correct: Each example rests on a separate constitutional authorisation for ordinary law or a non-Article-368 deeming mechanism.
- **D:** Incorrect: Article 368 itself, State representation and any Seventh Schedule List require the additional State-ratification route.

Examiner trap: A constitutional effect does not automatically make the measure an Article 368 amendment; inspect the enabling provision.

Q8. Which statement best describes institutional features absent from India's Article 368 process?

- A. A referendum is mandatory, but a constituent convention is optional.
- B. A joint sitting is available, though State ratification is not.
- C. A special constituent body must approve every amendment before Parliament votes.
- D. There is no referendum, no special constituent convention and no joint sitting to resolve House disagreement.

Answer: D.

- **A:** Incorrect: Article 368 contains no referendum stage of any kind.
- **B:** Incorrect: Joint sitting is unavailable, while State ratification is indispensable for the listed proviso subjects.
- **C:** Incorrect: The ordinary Houses of Parliament exercise the constituent function under special constitutional rules.
- **D:** Correct: India entrusts amendment to Parliament and, selectively, State legislatures without direct popular ratification or a separate amending assembly.

Examiner trap: Do not confuse Parliament acting in a constituent capacity with the creation of a separate constituent body.

Q9. Which proposition belongs to Shankari Prasad (1951)?

- A. A constitutional amendment was not "law" under Article 13(2), so Parliament could amend Fundamental Rights.
- B. Fundamental Rights were prospectively placed beyond amendment.
- C. The basic-structure doctrine limited constituent power.
- D. Article 368(4) and (5) were void because amending power is limited.

Answer: A.

- **A:** Correct: The Court distinguished constitutional amendment from ordinary "law" under Article 13 and upheld the First Amendment.
- **B:** Incorrect: The prospective rights lock was the position adopted later in Golak Nath.
- **C:** Incorrect: Basic structure emerged in Kesavananda Bharati, not in the 1951 case.
- **D:** Incorrect: The attack on clauses (4) and (5) belongs to Minerva Mills after the Forty-second Amendment.

Examiner trap: Shankari Prasad concerns Article 13 and amendability; it did not anticipate the basic-structure ceiling.

Q10. The distinctive remedial technique used in Golak Nath (1967) was:

- A. requiring State ratification for every Fundamental Rights amendment.
- B. prospective overruling, leaving earlier amendments undisturbed while restricting future abridgment of Fundamental Rights.
- C. testing only future Ninth Schedule insertions for basic-structure damage.
- D. suspending the judgment until Parliament held a referendum.

Answer: B.

- **A:** Incorrect: Golak Nath did not enlarge the Article 368 proviso or federalise every rights amendment.
- **B:** Correct: The Court changed the rule prospectively rather than unsettling constitutional amendments already made.
- **C:** Incorrect: The post-24 April 1973 Ninth Schedule cutoff was formulated in Waman Rao after Kesavananda.
- **D:** Incorrect: No referendum condition formed part of the judgment or Article 368.

Examiner trap: Prospective overruling protects past legal effects; it is different from severing an offending clause.

Q11. Which statement most accurately states the constitutional response made by the Twenty-fourth Amendment?

- A. It created the Ninth Schedule and Article 31B.
- B. It inserted Article 31C for Article 39(b) and (c) laws.
- C. It expressly affirmed constituent power, excluded Article 368 amendments from Article 13 and made Presidential assent obligatory.
- D. It declared every amendment immune from judicial review and the amending power unlimited.

Answer: C.

- **A:** Incorrect: Article 31B and the Ninth Schedule came through the First Amendment in 1951.
- **B:** Incorrect: Article 31C was the distinct intervention of the Twenty-fifth Amendment.
- **C:** Correct: The 1971 amendment answered Golak Nath through coordinated changes to Articles 13 and 368 and the word "shall" for assent.
- **D:** Incorrect: The attempt to exclude review and announce unlimited power came through section 55 of the Forty-second Amendment.

Examiner trap: Keep the Twenty-fourth Amendment's three moves together: constituent power, Article 13 exclusion and mandatory assent.

Q12. What was the legally important treatment of Article 31C as inserted by the Twenty-fifth Amendment in Kesavananda Bharati?

- A. The whole Twenty-fifth Amendment was struck down without severance.
- B. Article 31C was upheld as absolute immunity for every Directive Principle.
- C. Only the replacement of "compensation" by "amount" was examined; Article 31C was left undecided.
- D. The protection connected with Article 39(b) and (c) was substantially sustained, but the clause excluding judicial scrutiny of the claimed nexus was not.

Answer: D.

- **A:** Incorrect: The Court did not invalidate the amendment as an indivisible whole.
- **B:** Incorrect: The original Article 31C concerned Article 39(b) and (c), not all Directive Principles.
- **C:** Incorrect: Both the property-language changes and the new Article 31C architecture were part of the constitutional dispute.
- **D:** Correct: The disposition illustrates severability-constitutional protection survived in bounded form while conclusive exclusion of review failed.

Examiner trap: The Twenty-fifth Amendment is evidence of partial survival, not an all-valid or all-void result.

Q13. Which statement best captures the limited holding of Kesavananda Bharati (1973)?

- A. A 13-judge Bench decided 7:6 that every constitutional provision is amendable, but Parliament cannot damage or destroy the basic structure.
- B. Fundamental Rights can never be amended, irrespective of effect.
- C. Only the Preamble lies beyond amendment.
- D. Every amendment requires ratification by at least half the States.

Answer: A.

- **A:** Correct: The settlement restored broad amendability while imposing an identity-preserving substantive limit on Article 368.
- **B:** Incorrect: That repeats Golak Nath's absolute rights position, which Kesavananda did not preserve.
- **C:** Incorrect: The Preamble may be amended, but not so as to destroy a basic feature reflected in it or elsewhere.
- **D:** Incorrect: State ratification depends on the proviso subject, not on the importance of every amendment.

Examiner trap: The 7:6 holding is a limit on destructive effect, not one unanimous catalogue of permanently frozen clauses.

Q14. What did Indira Nehru Gandhi v. Raj Narain (1975) principally demonstrate for basic-structure review?

- A. The Forty-fourth Amendment validly insulated the Prime Minister's election.
- B. The offending part of the Thirty-ninth Amendment could not remove specified election disputes from judicial scrutiny consistently with free and fair elections, rule of law and review.
- C. All election laws must be enacted through Article 368.
- D. The entire Constitution became unamendable during an electoral dispute.

Answer: B.

- **A:** Incorrect: The attempted insulation belonged to the Thirty-ninth, not the Forty-fourth, Amendment.
- **B:** Correct: The case applied the new doctrine to protect democratic contestability and legal adjudication of high-office elections.
- **C:** Incorrect: Ordinary election legislation remains possible within legislative competence and constitutional rights.
- **D:** Incorrect: The judgment invalidated a targeted constitutional intervention rather than freezing the whole constitutional order.

Examiner trap: The case number trap is Thirty-ninth Amendment versus Forty-fourth Amendment; the remedy was targeted, not total.

Q15. Which pairing of Forty-second Amendment provisions and their objects is correct?

- A. Section 4 inserted Article 368(4)-(5); section 55 created the Ninth Schedule.
- B. Section 4 made Presidential assent optional; section 55 required referendums.
- C. Section 4 expanded Article 31C to all Directive Principles; section 55 inserted Article 368(4)-(5) to exclude review and declare unlimited power.
- D. Section 4 abolished Article 31C; section 55 removed constituent power from Parliament.

Answer: C.

- **A:** Incorrect: The section numbers and subjects are transposed, and the Ninth Schedule predates the Forty-second Amendment.
- **B:** Incorrect: Neither section introduced those procedures; Article 368 still lacks a referendum.
- **C:** Correct: The two provisions respectively disturbed the Rights-Directive Principles balance and tried to immunise unlimited amending power.
- **D:** Incorrect: The amendment moved in the opposite direction by enlarging protection and parliamentary claims.

Examiner trap: Remember "4 = Article 31C expansion" and "55 = Article 368(4)-(5)" before stating the Minerva Mills result.

Q16. Why is Minerva Mills (1980) central to the doctrine of limited amending power?

- A. It held that only Fundamental Rights form the basic structure.
- B. It required all Directive Principles amendments to secure State ratification.
- C. It upheld Article 368(4)-(5) but read them narrowly.
- D. It invalidated sections 4 and 55 of the Forty-second Amendment because rights-Directive Principles harmony, judicial review and limited amending power could not be destroyed.

Answer: D.

- **A:** Incorrect: The basic structure is not confined to Part III and includes institutional and structural features.
- **B:** Incorrect: The judgment did not alter the closed ratification proviso.
- **C:** Incorrect: Clauses (4) and (5) were struck, not preserved as valid unlimited-power provisions.
- **D:** Correct: A Constitution-created limited power cannot enlarge itself into an unreviewable power of constitutional destruction.

Examiner trap: Minerva Mills addresses both section 4 and section 55; do not reduce it to Article 368(4)-(5) alone.

Q17. The principal significance of Waman Rao for Ninth Schedule review is that it:

- A. fixed 24 April 1973 as the prospective dividing line for challenges to later Ninth Schedule insertions.
- B. treated every pre-1973 listed law as invalid.
- C. abolished Article 31B from the date of judgment.
- D. extended Golak Nath's Article 13 rule to every ordinary statute.

Answer: A.

- **A:** Correct: Amendments inserting laws after the Kesavananda date were left open to basic-structure challenge, while earlier insertions were not reopened on that ground.
- **B:** Incorrect: The Court protected, rather than invalidated wholesale, the pre-cutoff constitutional amendments adding laws.
- **C:** Incorrect: Article 31B continued; its post-cutoff use became constitutionally reviewable.
- **D:** Incorrect: The case applied basic structure to constitutional amendments and did not revive an all-purpose Golak Nath formula for statutes.

Examiner trap: The cutoff governs the amendment inserting a law into the Schedule; reviewability after it is not automatic invalidity.

Q18. Under I.R. Coelho (2007), a law inserted into the Ninth Schedule after 24 April 1973:

- A. is void merely because it abridges any Fundamental Right.
- B. is reviewable to determine whether the rights impact damages a basic feature of the Constitution.
- C. receives absolute immunity once the President assents to the inserting amendment.
- D. can be examined only for legislative competence and never for Part III impact.

Answer: B.

- **A:** Incorrect: The Court requires a basic-structure impact, not a rule that every rights abridgment automatically voids the insertion.
- **B:** Correct: The analysis links the affected Part III right to a basic feature and measures the degree and effect of the immunised violation.
- **C:** Incorrect: Presidential assent cannot convert Article 31B into post-1973 blanket immunity.
- **D:** Incorrect: Coelho specifically preserves rights-based basic-structure scrutiny in addition to other constitutional controls.

Examiner trap: Write the three-step test: affected right -> basic feature -> damaging effect; do not stop at "rights violation".

Q19. Which statement about identifying the basic structure is constitutionally safest?

- A. Kesavananda Bharati unanimously published a closed list binding every later case.
- B. Only features written in the Preamble can qualify.
- C. The doctrine is non-exhaustive and case-attributed; later cases identify features in their own factual and constitutional settings.
- D. Any value mentioned by one judge automatically invalidates future amendments.

Answer: C.

- **A:** Incorrect: The judges produced overlapping opinions, not a single exhaustive catalogue endorsed in identical terms.
- **B:** Incorrect: The Preamble is important evidence, but structural features also arise from Parts, Articles and institutional design.
- **C:** Correct: Attribution distinguishes the core limitation from particular features developed through Indira Gandhi, Minerva Mills, Bommai, L. Chandra Kumar and NJAC.
- **D:** Incorrect: A feature claim still requires constitutional grounding, precedent and proof of damage by the challenged amendment.

Examiner trap: Name the case attached to the feature and avoid the phrase "the Supreme Court's final list".

Q20. Which is the technically correct use of Anjum Kadari (2024 INSC 831)?

- A. It ended basic-structure review of constitutional amendments.
- B. It made secularism irrelevant to ordinary-law review.
- C. It immunised every education statute from Part III.
- D. It held that an ordinary statute cannot be invalidated solely for violating basic structure; the defect must be tied to competence, Part III or another constitutional provision.

Answer: D.

- **A:** Incorrect: The judgment reaffirmed the distinction that leaves amendment review under Kesavananda intact.
- **B:** Incorrect: Secularism may operate through concrete constitutional provisions; only the free-standing label is insufficient.
- **C:** Incorrect: Statutes remain reviewable for legislative and rights defects, including education-related constitutional commands.
- **D:** Correct: The decision disciplines the form of ordinary-law challenges without shrinking written-constitutional judicial review.

Examiner trap: For a statute, write "violates Articles X/Y embodying the feature," not merely "violates basic structure".

Q21. Which provision was added to the Article 368 ratification proviso by the One Hundred and First Amendment?

- A. Article 279A
- B. Article 280
- C. Article 312
- D. Article 301

Answer: A.

- **A:** Correct: Article 279A establishes the GST Council and is expressly named in the proviso after the GST constitutional amendment.
- **B:** Incorrect: The Finance Commission article is not individually listed in the ratification proviso.
- **C:** Incorrect: All India Services under Article 312 are not added as a separate named item.
- **D:** Incorrect: Freedom of trade under Article 301 does not independently appear in the closed proviso list.

Examiner trap: GST Council is a specific textual addition; do not replace it with the broader phrase "all fiscal federalism".

Q22. Which statement most accurately connects the NJAC judgment with basic structure?

- A. It invalidated every statute touching court administration.
- B. It invalidated the Ninety-ninth Amendment framework because judicial independence is a basic feature, with the dependent NJAC Act falling with that constitutional design.
- C. It held judicial appointments wholly beyond constitutional amendment.
- D. It applied basic structure as a free-standing test to an unrelated ordinary Act.

Answer: B.

- **A:** Incorrect: Court-administration statutes are not categorically prohibited and must be tested against specific constitutional limits.
- **B:** Correct: The decisive target was a constitutional amendment altering appointments architecture in a manner the majority found destructive of judicial independence.
- **C:** Incorrect: Appointment mechanisms may be amended, but not in a way that damages the protected institutional feature.
- **D:** Incorrect: The case cannot be converted into a general ordinary-statute doctrine contrary to Anjum Kadari.

Examiner trap: NJAC is amendment-specific evidence for judicial independence, not a licence to strike every judicial statute on a slogan.

Q23. What is the central basic-structure proposition of L. Chandra Kumar (1997)?

- A. Tribunal decisions are immune from High Court scrutiny.
- B. Parliament cannot create tribunals under Articles 323A and 323B.
- C. Judicial review under Articles 32 and 226/227 is integral to the basic structure, so tribunal decisions remain subject to constitutional-court review.
- D. Every tribunal must be created by constitutional amendment.

Answer: C.

- **A:** Incorrect: The judgment rejected final exclusion of High Court review over tribunal decisions.
- **B:** Incorrect: Tribunals may function as courts of first instance within constitutionally permissible arrangements.
- **C:** Correct: The Court preserved the supervisory and review jurisdiction of the Supreme Court and High Courts as an essential structural safeguard.
- **D:** Incorrect: Ordinary legislation may establish tribunals under the constitutional grants, subject to review and institutional safeguards.

Examiner trap: The case protects constitutional-court review; it does not abolish tribunals or make them constitutionally redundant.

Q24. The amendment-versus-replacement distinction most directly asks whether:

- A. the Bill was introduced by a minister.
- B. the President delayed assent.
- C. every State ratified the text.
- D. the constitutional order retains its basic identity after the change.

Answer: D.

- **A:** Incorrect: Sponsorship concerns procedure, not whether the old Constitution survives as the same legal order.
- **B:** Incorrect: Delay is not the conceptual boundary between amendment and constituent founding.
- **C:** Incorrect: Even unanimous political support cannot by itself transform a destructive replacement into a valid Article 368 amendment.
- **D:** Correct: Article 368 presupposes continuity; destruction of the framework that creates the amending power resembles a new constituent act.

Examiner trap: Political magnitude and legal identity are different questions; a large amendment may still preserve the Constitution.

Q25. What is the verified position of the One Hundred and Sixth Amendment as checked on 7 September 2026?

- A. S.O. 1922(E) commenced the Act on 16 April 2026, but Article 334A still makes operational reservation depend on the post-commencement census figures and delimitation.
- B. Presidential assent in 2023 immediately reserved seats without further constitutional conditions.
- C. The defeated One Hundred and Thirty-first Amendment Bill automatically implemented women's reservation.
- D. The Act remains wholly uncommenced because no Gazette notification exists.

Answer: A.

- **A:** Correct: Commencement activated the constitutional framework, while Article 334A preserves distinct census-publication and delimitation gates.
- **B:** Incorrect: Enactment and assent did not by themselves satisfy the express operational conditions.
- **C:** Incorrect: A defeated proposal has no amending effect and cannot operationalise another constitutional measure.
- **D:** Incorrect: The official Gazette notification 271834 records the appointed commencement date.

Examiner trap: Keep enactment, commencement and operation in separate columns; one date cannot silently perform all three functions.

Q26. What did the Lok Sabha division on the Constitution (One Hundred and Thirty-first Amendment) Bill, 2026 illustrate?

- A. The proposed 850-seat ceiling became law after 298 ayes.
- B. A Bill may clear the total-membership-majority limb yet fail the two-thirds present-and-voting limb.
- C. State ratification can cure failure in the first House.
- D. A joint sitting becomes available when only the second limb fails.

Answer: B.

- **A:** Incorrect: The proposal was negated and never altered Article 81 or any other constitutional provision.
- **B:** Correct: With 528 present and voting, 352 ayes were needed for the second limb; 298 exceeded the total-membership majority but not two-thirds.
- **C:** Incorrect: Ratification occurs only after passage in both Houses and cannot substitute for a failed parliamentary threshold.

- **D:** Incorrect: Article 368 provides no joint-sitting escape from either form of House failure.

Examiner trap: Use the division only as arithmetic evidence; never cite the proposed seat numbers as operative law or precedent.

Q27. Which statement correctly distinguishes an effective majority from the Article 368 majority?

- A. They are identical because vacancies are ignored in both.
- B. Article 368 uses only two-thirds of effective strength.
- C. An effective majority uses the House's then-existing strength after vacancies; Article 368 separately requires a majority of total membership plus two-thirds present and voting.
- D. Effective majority is the State-ratification rule under Article 368.

Answer: C.

- **A:** Incorrect: Vacancies affect effective strength but do not reduce Article 368's total-membership limb.
- **B:** Incorrect: Article 368 neither substitutes effective strength nor uses it as the sole denominator.
- **C:** Correct: The distinction prevents the removal-majority concept used elsewhere from being imported into constitutional amendment arithmetic.
- **D:** Incorrect: State ratification is by resolution with an ordinary present-and-voting majority, not an effective majority.

Examiner trap: "Total membership" in Article 368 means full sanctioned strength, not "all the then members".

Q28. Which statement best describes State ratification under the Article 368 proviso?

- A. States may amend the Bill before ratifying it.
- B. The Governor's assent converts the ratification resolution into State law.
- C. Union Territory legislatures count toward the half-State threshold.
- D. The passed parliamentary text is ratified by resolutions of not less than half the State legislatures; Article 368 sets no time limit and gives States no amendment initiative.

Answer: D.

- **A:** Incorrect: A State legislature may ratify or refuse the parliamentary text, not rewrite it.
- **B:** Incorrect: Ratification is a legislative resolution under the federal amendment process, not a State Bill awaiting gubernatorial assent.
- **C:** Incorrect: The constitutional expression is "States"; Union Territory legislatures do not enter the count.
- **D:** Correct: State participation is a selective veto over listed federal subjects, bounded by the text and sequence of Article 368.

Examiner trap: State role is consent after parliamentary passage, not initiation, textual amendment or executive assent.

Q29. In an Article 368 vote, 300 members are present, 270 vote and 30 abstain. What is the denominator for the two-thirds present-and-voting limb?

- A. 270
- B. 300
- C. The total membership of the House
- D. Only the affirmative votes

Answer: A.

- **A:** Correct: Abstainers are present but not voting, so the second denominator contains the 270 members who cast a vote.
- **B:** Incorrect: Counting abstentions would replace "present and voting" with the broader phrase "present".
- **C:** Incorrect: Total membership supplies the separate first limb and cannot be reused automatically for the second.
- **D:** Incorrect: The denominator includes both ayes and noes; otherwise the fraction would become circular.

Examiner trap: Abstention can reduce the second denominator but never the full-strength threshold in the first limb.

Q30. Which correction is necessary to the statement "Abolition of a State Legislative Council needs only a simple majority"?

- A. Rajya Sabha alone passes the final law.
- B. Parliament's law is ordinary, but the initiating State Assembly resolution requires the special majority prescribed by Article 169.
- C. Only the Governor may initiate abolition.
- D. Every State must ratify the proposal.

Answer: B.

- **A:** Incorrect: Both Houses of Parliament participate in the ordinary parliamentary law where Parliament is bicameral.
- **B:** Correct: The common shorthand is incomplete unless the State Assembly's total-membership plus two-thirds present-and-voting precondition is stated.
- **C:** Incorrect: Article 169 assigns the initiating decision to the Legislative Assembly, not the Governor.
- **D:** Incorrect: Other States have no ratification role in changing one State's Council under Article 169.

Examiner trap: An outside-Article-368 route may still contain a specially entrenched trigger inside its own enabling Article.

Q31. An ordinary State statute is alleged to destroy federalism. After Anjum Kadari, what should the court ask first?

- A. Whether half the States ratified the ordinary statute.
- B. Whether the President gave mandatory assent under Article 368.
- C. Whether the State lacked legislative competence or the statute violates an express constitutional provision embodying the federal limit.
- D. Whether federalism appears in any individual judge's list of basic features.

Answer: C.

- **A:** Incorrect: Article 368 ratification has no role in enacting an ordinary State law.
- **B:** Incorrect: Mandatory Presidential assent concerns a Constitution Amendment Bill, not ordinary State legislation.
- **C:** Correct: The challenge must be anchored in the distribution of power, Part III or another concrete constitutional command.
- **D:** Incorrect: A free-floating feature label cannot displace the written tests governing statutory validity.

Examiner trap: The same value may matter in both fields, but the legal route differs for statutes and constitutional amendments.

Q32. Which result best illustrates severability in constitutional-amendment review?

- A. Every challenged amendment must survive or fall as a whole.
- B. A court may rewrite a failed Bill into a different amendment.
- C. Prospective overruling and severability are identical remedies.
- D. An offending provision may be invalidated while separable valid provisions continue, as the Article 31C treatment and targeted amendment cases illustrate.

Answer: D.

- **A:** Incorrect: Constitutional adjudication does not impose an automatic all-or-nothing remedy where valid text can operate independently.
- **B:** Incorrect: Severability removes unconstitutional content; it does not author a new measure that Parliament never enacted.

- **C:** Incorrect: Prospective overruling controls temporal effect, whereas severability controls which textual parts remain operative.
- **D:** Correct: The remedy respects constitutional limits while preserving independently workable choices that do not damage the basic structure.

Examiner trap: Ask two separate questions: which part is invalid, and from what date does the legal rule operate?

PYQS AND ANSWER PRACTICE

PYQ provenance and answer-control ledger

Year	Stage	Question	Source and key control
2019	GS-II Mains	Q12	Local official paper and routed ledger; 15 marks, 250 words
2025	GS-II Mains	Q12	Local official paper and routed ledger; 15 marks, 250 words
2018	Prelims GS-I	Q5	Local official booklet; final official/local-official key not held, so answer letter withheld
2019	Prelims GS-I	Q45	Local official booklet; final official/local-official key not held, so answer letter withheld
2019	Prelims GS-I	Q47	Local official booklet; final official/local-official key not held, so answer letter withheld
2020	Prelims GS-I	Q13	Official scan wording checked; final official/local-official key not held, so answer letter withheld
2022	Prelims GS-I	Q13	Local official booklet; final official/local-official key not held, so answer letter withheld
2023	Prelims GS-I	Q34	Local official booklet; final official/local-official key not held, so answer letter withheld
2024	Prelims GS-I	Q66	Local official Set-A paper and final key; D
2025	Prelims GS-I	Q58	Local official Set-A paper and final key; A

Solved Mains PYQ 1. UPSC 2019 GS-II Q12

Question: "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power. **(15 marks, 250 words)**

Model solution.

Article 368 confers a broad constituent power, but the word "amend" does not authorise destruction of the constitutional order that creates Parliament.

The early cases allowed extensive amendment. *Shankari Prasad* and *Sajjan Singh* excluded constitutional amendments from "law" under Article 13. *Golak Nath* reversed that view prospectively, after which the Twenty-fourth Amendment expressly affirmed constituent power and mandatory Presidential assent. In *Kesavananda Bharati*, a thirteen-judge Bench decided 7:6 that Parliament may amend every Part, including Fundamental Rights, but cannot damage or destroy the basic structure.

Parliament therefore cannot enlarge its own authority into absolute power. Section 55 of the Forty-second Amendment inserted Article 368(4) and (5), excluding judicial review and declaring no limitation on constituent power. *Minerva Mills* invalidated those clauses because limited amending power and judicial review are themselves basic features: a delegated constitutional power cannot erase its source and limits. *Indira Nehru Gandhi* protected free and fair elections and review; *I.R. Coelho* preserved effect-based scrutiny of post-1973 Ninth Schedule insertions; the NJAC decision protected judicial independence.

Thus Parliament may restructure institutions and rights, but Article 368 ends where constitutional replacement begins. The doctrine permits transformation while preventing the amending body from abolishing constitutional supremacy, democratic contestability and independent review.

Audited model-answer word count: 204 words.

Why this earns marks: It answers the self-enlargement issue through the Twenty-fourth/Forty-second Amendment dialogue, the exact Kesavananda limit and *Minerva Mills* rather than merely listing features.

Answer-writing focus: Draw limited power -> attempted review exclusion -> Minerva Mills -> still limited and reserve the conclusion for amendment versus destruction.

Solved Mains PYQ 2. UPSC 2025 GS-II Q12

Question: Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of the Parliament to change the Constitution. **(15 marks, 250 words)**

Model solution.

The Constitution uses the ordinary Houses of Parliament for amendment, but they exercise a specially constituted and doubly limited power.

Procedural limits: A Bill may begin in either House and be introduced by a minister or private member without prior Presidential recommendation. Each House must pass it separately by a majority of total membership and not less than two-thirds of members present and voting; there is no joint sitting. Amendments to the exact federal proviso subjects additionally need resolutions of not less than half the State legislatures before presentation to the President. States cannot initiate or alter the Bill. The President shall assent after the Twenty-fourth Amendment. Article 368 provides no referendum or special constituent convention.

The 2026 division on the defeated One Hundred and Thirty-first Amendment Bill illustrates the dual denominator: 298 ayes exceeded the Lok Sabha total-membership majority but fell below two-thirds of 528 present and voting.

Substantive limit: *Kesavananda Bharati* permits amendment of every Part but forbids damage to the basic structure. *Minerva Mills* protects judicial review and limited amending power; *Indira Nehru Gandhi, I.R. Coelho* and NJAC show applications to elections, Ninth Schedule immunity and judicial independence. The list is not closed, so courts must identify a textually and precedentially grounded feature and actual destructive effect.

Hence Parliament can transform the Constitution through entrenched procedure, but cannot replace its identity. Procedure checks the manner of change; basic structure checks its constitutional effect.

Audited model-answer word count: 237 words.

Why this earns marks: It visibly separates the two categories of limitation, states every decisive procedural control and qualifies the open-ended doctrine with a disciplined damage test.

Answer-writing focus: Use two headings-Procedural and Substantive-and do not spend the 250-word answer reciting a random amendment list.

Solved Prelims PYQ 1. UPSC 2018 GS-I Q5

Consider the following statements:

1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no judgement can be made on it.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: Parliament may add a law to the Ninth Schedule through constitutional amendment. The second statement uses absolute-immunity language that conflicts with *Waman Rao* and *I.R. Coelho*: post-24 April 1973 insertions remain reviewable for basic-structure impact. Reviewability does not make every listed law invalid.

Solved Prelims PYQ 2. UPSC 2019 GS-I Q45

Consider the following statements:

1. The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.
2. The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: The attempted insulation of specified high-office election disputes belonged to the Thirty-ninth Amendment, not the Forty-fourth. The NJAC judgment invalidated the Ninety-ninth Amendment framework because judicial independence is a basic feature.

Solved Prelims PYQ 3. UPSC 2019 GS-I Q47

The Ninth Schedule was introduced in the Constitution of India during the prime ministership of:

A. Jawaharlal Nehru B. Lal Bahadur Shastri C. Indira Gandhi D. Morarji Desai

Answer withheld pending official UPSC key.

Concept analysis: Article 31B and the Ninth Schedule were inserted by the First Amendment Act, 1951. The constitutional chronology places that amendment during Jawaharlal Nehru's prime ministership, but the answer letter is not printed without the held final official key.

Solved Prelims PYQ 4. UPSC 2020 GS-I Q13

Consider the following statements:

1. The Constitution of India defines its basic structure in terms of federalism, secularism, Fundamental Rights and democracy.
2. The Constitution of India provides for judicial review to safeguard the citizens' liberties and to preserve the ideals on which the Constitution is based.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Concept analysis: The constitutional text does not enumerate or define a closed basic-structure list; the doctrine was judicially developed. Judicial review, however, is constitutionally expressed through provisions including Articles 13, 32 and 226 and has itself been treated as basic.

Solved Prelims PYQ 5. UPSC 2022 GS-I Q13

Consider the following statements:

1. A bill amending the Constitution requires a prior recommendation of the President of India.
2. When a Constitution Amendment Bill is presented to the President of India, it is obligatory for the President of India to give his/her assent.
3. A Constitution Amendment Bill must be passed by both the Lok Sabha and the Rajya Sabha by a special majority and there is no provision for joint sitting.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Answer withheld pending official UPSC key.

Concept analysis: Prior Presidential recommendation is not required. The Twenty-fourth Amendment made assent obligatory, and both Houses must separately pass the amendment by the Article 368 majority without a joint sitting.

Solved Prelims PYQ 6. UPSC 2023 GS-I Q34

In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

A. 1st Amendment B. 42nd Amendment C. 44th Amendment D. 86th Amendment

Answer withheld pending official UPSC key.

Concept analysis: The First Amendment altered the Article 19 restriction framework and inserted Articles 31A and 31B with the Ninth Schedule in response to early rights adjudication. The answer letter remains withheld because the final official/local-official 2023 key is not held.

Solved Prelims PYQ 7. UPSC 2024 GS-I Q66

As per Article 368 of the Constitution of India, the Parliament may amend any provision of the Constitution by way of:

1. Addition
2. Variation
3. Repeal

Select the correct answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Final official/local-official key verified: D.

Concept analysis: Article 368(1) expressly uses all three forms-addition, variation and repeal-while the basic-structure doctrine limits destructive effect, not the vocabulary of amendment.

Solved Prelims PYQ 8. UPSC 2025 GS-I Q58

Consider the following subjects under the Constitution of India:

I. List I-Union List, in the Seventh Schedule II. Extent of the executive power of a State III. Conditions of the Governor's office

For a constitutional amendment with respect to which of the above is ratification by the Legislatures of not less than one-half of the States required before presenting the Bill to the President of India for assent?

A. I and II only B. II and III only C. I and III only D. I, II and III

Final official/local-official key verified: A.

Concept analysis: Any Seventh Schedule List and Article 162, which governs the extent of State executive power, are proviso subjects. Conditions of the Governor's office are not independently named.

Six original Mains questions with model solutions

Original Q1. Explain how India's constitutional amendment design synthesises flexibility and rigidity. (10 marks, 150 words)

Model solution.

India uses graded entrenchment instead of one universal threshold. First, express constitutional provisions permit ordinary parliamentary law outside Article 368-for example, Articles 2-4 for State reorganisation and Article 11 for citizenship. Article 169 adds a qualification: Parliament's law is ordinary, but the initiating State Assembly resolution needs its prescribed special majority.

Second, most entrenched provisions require in each House a majority of total membership plus not less than two-thirds present and voting. Failure in either House ends the Bill because no joint sitting is available. Third, changes to the federal proviso subjects also require ratification by not less than half the State legislatures.

Procedure therefore combines adaptation with graduated consent. *Kesavananda Bharati* adds substantive rigidity: every Part may be amended, but constitutional identity cannot be destroyed. India is neither wholly flexible nor mechanically rigid; it is a layered system of ordinary change, special-majority change, federal consent and identity preservation.

Audited model-answer word count: 150 words.

Why this earns marks: It defines flexibility through the three routes, qualifies Article 169 and adds the basic-structure ceiling without diverting into a long chronology.

Answer-writing focus: Convert the body into a four-step rail: ordinary route -> special majority -> State consent -> identity limit.

Original Q2. The role of States in constitutional amendment is significant but narrowly confined. Discuss. (10 marks, 150 words)

Model solution.

States have no general amendment initiative under Article 368. A Constitution Amendment Bill begins only in either House of Parliament, and States do not ratify most amendments. Their decisive role arises only when the passed Bill changes the exact proviso subjects: Articles 54, 55, 73, 162, 241 and 279A; the named Union and State judiciary chapters; Chapter I of Part XI; any Seventh Schedule List; State representation in Parliament; or Article 368 itself.

Ratification follows passage by both Houses and must precede Presidential assent. Resolutions of not less than half the State legislatures are enough; States cannot amend the text, Union Territories do not count and Article 368 fixes no deadline. A gubernatorial assent stage is not added to the resolution.

Thus State participation protects the federal compact without creating a general State veto or coequal constituent assembly. The design is federally entrenched at selected points but Parliament-centred elsewhere.

Audited model-answer word count: 149 words.

Why this earns marks: It combines the exact subject clusters, procedural sequence and limits on State agency in a direct federalism verdict.

Answer-writing focus: Contrast "selective blocking voice" with "no initiation or rewriting power".

Original Q3. Critically examine the claim that the basic-structure doctrine converts judicial review into judicial supremacy. (15 marks, 250 words)

Model solution.

The doctrine empowers courts to invalidate a constitutional amendment that damages constitutional identity. Because Article 368 does not enumerate the protected features, the counter-majoritarian objection is substantial.

The criticism has three strengths. *Kesavananda Bharati* was a 7:6 decision with overlapping opinions rather than one closed feature list. Later cases attributed additional applications-free and fair elections in *Indira Nehru Gandhi*, limited amending power and Rights-Directive Principles harmony in *Minerva Mills*, federalism and secularism in *S.R. Bommai*, and judicial independence in *N.J. Rao*. An open list leaves elected super-majorities uncertain and gives unelected judges the final institutional word. Impressionistic feature-identification could become a policy veto.

Yet review remains defensible. Parliament is a Constitution-created body, not a legally sovereign constituent founder. Section 55 of the Forty-second Amendment tried to exclude review and make power unlimited; *Minerva Mills* exposed the contradiction of a limited power erasing its limit. Democracy also includes future elections, opposition, liberty, federal voice and independent courts. *I.R. Coelho* uses an effect test rather than automatic invalidity, while *Anjum Kadari* refuses a free-standing basic-structure attack on ordinary statutes.

Legitimacy therefore depends on restraint: identify the feature's textual and precedential basis, prove actual damage rather than policy disagreement, address contrary authority and tailor the remedy through severability. Properly used, the doctrine is constitutional review; loosely used, it risks judicial supremacy.

Audited model-answer word count: 222 words.

Why this earns marks: It accepts the democratic objection, answers it through the Forty-second Amendment-Minerva chain and proposes an administrable restraint test.

Answer-writing focus: Present criticism and defence symmetrically, then make the final verdict conditional on reasoning discipline.

Original Q4. Explain the present constitutional position of laws inserted into the Ninth Schedule after 24 April 1973. (15 marks, 250 words)

Model solution.

Article 31B validates laws listed in the Ninth Schedule notwithstanding inconsistency with Part III, but the shield is not absolute for later constitutional amendments.

The First Amendment created Article 31B and the Schedule in 1951, initially protecting land-reform measures. *Kesavananda Bharati* then established on 24 April 1973 that Article 368 cannot damage the basic structure. In *Waman Rao*, the Supreme Court applied that doctrine prospectively to amendments adding laws after the *Kesavananda* date; pre-cutoff insertions were not reopened on basic-structure grounds.

I.R. Coelho unanimously clarified the post-cutoff test. The court identifies the Part III right affected by the listed law, asks whether the right's essence forms part of a basic feature, and examines whether the constitutional immunity causes damaging or destructive impact. Thus a law is reviewable because the inserting constitutional amendment is subject to Article 368's substantive limit. It is not void merely because it abridges any right.

Three distinctions are essential. Article 31A category protection differs from Article 31B listed-law validation. Judicial review concerns effect, not the political label of the statute. Finally, reviewability does not imply automatic invalidity; the required basic-structure impact must be proved.

The present position preserves land-reform and legislative space while preventing the Ninth Schedule from becoming a vault against constitutional identity and judicial review.

Audited model-answer word count: 212 words.

Why this earns marks: It gives origin, cutoff, the Coelho test and three close-option distinctions instead of repeating "Ninth Schedule is reviewable".

Answer-writing focus: Use the chain date of insertion -> affected right -> basic feature -> degree of impact -> remedy.

Original Q5. "A constitutional amendment may transform the Constitution, but it cannot replace its identity." Discuss. (20 marks, 250 words)

Model solution.

Article 368 is a power of amendment within an existing constitutional order. Addition, variation and repeal permit profound change, but the authority remains constituted by the Constitution and cannot abolish its own source.

Transformative amendment is both legitimate and necessary. Amendments have reworked property relations, strengthened social justice, constitutionalised local government, created the GST framework and expanded representation. *Kesavananda Bharati* therefore rejected Golak Nath's absolute rights lock: Parliament may amend every Part, including Fundamental Rights and the Preamble.

The boundary is destructive effect. A change becomes replacement when it disables the features that keep the order recognisably constitutional-constitutional supremacy, democratic contestability, judicial review, limited government and institutional independence. *Indira Nehru Gandhi* rejected election immunity for specified high offices. Section 55 of the Forty-second Amendment attempted to make constituent power unlimited; *Minerva Mills* struck it because limited amending power and judicial review are basic. NJAC shows that even institutionally ambitious reform must preserve judicial independence.

Courts should not equate novelty with destruction. They must identify a case-supported feature, compare the constitutional position before and after amendment, distinguish regulation from disabling damage and preserve valid parts through severability. Political disagreement or reduced institutional preference is insufficient.

Thus basic structure is not an anti-reform fossil. It separates constitutional transformation, which renews the charter, from constitutional replacement, which would require a new exercise of original constituent authority rather than Article 368.

Audited model-answer word count: 228 words.

Why this earns marks: It demonstrates transformative capacity with named amendment fields, then states a workable identity-and-effect test with case evidence and remedial caution.

Answer-writing focus: Avoid saying "basic features can never be touched"; the correct claim is that they cannot be damaged or destroyed.

Original Q6. Trace Parliament-Court dialogue in the evolution of the basic-structure doctrine and assess its constitutional significance. (20 marks, 250 words)

Model solution.

The doctrine emerged through institutional dialogue over Fundamental Rights, social reform and the location of ultimate constitutional authority.

Shankari Prasad and *Sajjan Singh* allowed rights amendment by excluding constitutional amendments from Article 13. *Golak Nath* reversed that rule prospectively and treated rights as beyond future abridgment. Parliament answered through the Twenty-fourth Amendment's express constituent power and Article 13 exclusion, and through the Twenty-fifth Amendment's property and Article 31C changes.

Kesavananda Bharati produced a synthesis: every Part remained amendable, but a 7:6 majority denied power to damage the basic structure. The dialogue continued. The Thirty-ninth Amendment tried to insulate specified election disputes; *Indira Nehru Gandhi* protected free and fair elections and review. Sections 4 and 55 of the Forty-second Amendment expanded Article 31C and claimed unlimited, unreviewable power; *Minerva Mills* invalidated them while recognising Rights-Directive Principles harmony, judicial review and limited amending power.

Later cases refined application rather than replacing the settlement. *Waman Rao* fixed the 24 April 1973 cutoff; *I.R. Coelho* developed effect-based Ninth Schedule scrutiny; *L. Chandra Kumar* protected constitutional-court review; NJAC protected judicial independence. *Anjum Kadari* confined the free-standing doctrine to constitutional amendments, preserving text-linked review of statutes.

The significance is dual: democratic institutions retain broad transformative capacity, while no temporary majority can legally extinguish constitutional identity. The dialogue remains legitimate only when courts attribute features carefully and Parliament treats amendment as constitutional stewardship rather than sovereignty.

Audited model-answer word count: 232 words.

Why this earns marks: It traces claim, response and synthesis across amendments and judgments, then evaluates both transformative capacity and judicial restraint.

Answer-writing focus: Organise chronology as alternating institutional moves, not as an unanalysed case list.